

IN THE COURT OF COMMON PLEAS

DIVISION

COUNTY, OHIO

Name

Case No.

Street Address

Judge

City

State

Zip Code

Magistrate

Plaintiff

vs.

Name

Street Address

City

State

Zip Code

Defendant

**WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.**

**Instructions:** This form is used in response to a filing of a Counterclaim for Divorce without Children, and allows you to agree with or dispute the statements made in the Counterclaim for Divorce without Children. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

**REPLY TO COUNTERCLAIM FOR DIVORCE WITHOUT CHILDREN**

In Reply to Defendant's Counterclaim for Divorce, Plaintiff states as follows:

1. Plaintiff filed a Complaint for Divorce or a Complaint for Legal Separation
2. Plaintiff alleged proper jurisdiction and venue.

**ADMIT      DENY**

- |                          |                          |                                                                                                                                                                                                   |
|--------------------------|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> | <input type="checkbox"/> | 3. The date of Plaintiff and Defendant's marriage stated in the Counterclaim.                                                                                                                     |
| <input type="checkbox"/> | <input type="checkbox"/> | 4. The place of Plaintiff and Defendant's marriage stated in the Counterclaim.                                                                                                                    |
| <input type="checkbox"/> | <input type="checkbox"/> | 5. Neither party is pregnant.                                                                                                                                                                     |
| <input type="checkbox"/> | <input type="checkbox"/> | A party is pregnant.                                                                                                                                                                              |
| <input type="checkbox"/> | <input type="checkbox"/> | 6. Any child(ren) born from or adopted during this marriage or relationship is/are now adults and none are mentally or physically disabled and incapable of supporting or maintaining themselves. |
| <input type="checkbox"/> | <input type="checkbox"/> | 7. Plaintiff is an active-duty servicemember of the United States military.                                                                                                                       |
| <input type="checkbox"/> | <input type="checkbox"/> | Defendant is an active-duty servicemember of the United States military.                                                                                                                          |
|                          |                          | 8. Plaintiff further admits or denies the following grounds for divorce:                                                                                                                          |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff and Defendant are incompatible.                                                                                                                                                         |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.                                                                             |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.                                                                                                                  |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff has been willfully absent for one (1) year.                                                                                                                                             |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff is guilty of adultery.                                                                                                                                                                  |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff is guilty of extreme cruelty.                                                                                                                                                           |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff is guilty of fraudulent contract.                                                                                                                                                       |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff is guilty of gross neglect of duty.                                                                                                                                                     |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff is guilty of habitual drunkenness.                                                                                                                                                      |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff is imprisoned in a state or federal correctional institution at the time of the filing of the Complaint.                                                                                |
| <input type="checkbox"/> | <input type="checkbox"/> | Plaintiff procured a divorce outside this state by virtue of which Plaintiff has been released from the obligations of the marriage, while those obligations remain binding on Defendant.         |
| <input type="checkbox"/> | <input type="checkbox"/> | 9. Plaintiff and Defendant are owners of real estate and/or personal property.                                                                                                                    |
| <input type="checkbox"/> | <input type="checkbox"/> | 10. Plaintiff denies any allegations not specifically admitted.                                                                                                                                   |

The Plaintiff requests:

- ☐ the Counterclaim for Divorce be dismissed OR  
☐ a divorce be granted and any further relief deemed proper.

\_\_\_\_\_  
Attorney or Self Represented Party Signature

\_\_\_\_\_  
Printed Name

\_\_\_\_\_  
Address

\_\_\_\_\_  
City State Zip Code

\_\_\_\_\_  
Phone Number

\_\_\_\_\_  
Fax Number

\_\_\_\_\_  
E-mail

\_\_\_\_\_  
Supreme Court Reg No. (if any)

**CERTIFICATE OF SERVICE**  
(Check the boxes that apply)

Plaintiff delivered a copy of the Reply to Counterclaim for Divorce without Children.

On: (Date) \_\_\_\_\_, 20 \_\_\_\_\_

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)  
\_\_\_\_\_

At: (Print address or fax number) \_\_\_\_\_  
\_\_\_\_\_

- By:
- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts
  - ☐ Regular U.S. Mail
  - ☐ Fax
  - ☐ Hand Delivery
  - ☐ Other: \_\_\_\_\_

\_\_\_\_\_  
Signature